

STATE OF NEW YORK

1235--A

2025-2026 Regular Sessions

IN SENATE

January 8, 2025

Introduced by Sen. COMRIE -- read twice and ordered printed, and when printed to be committed to the Committee on Corporations, Authorities and Commissions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the New York state medical care facilities finance agency act, in relation to the ability to issue certain bonds and notes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (b) of subdivision 1 of section 7 of section 1 of
2 chapter 392 of the laws of 1973, constituting the New York state medical
3 care facilities finance agency act, as amended by chapter 469 of the
4 laws of 2023, is amended to read as follows:

5 (b) The agency shall not issue hospital and nursing home project bonds
6 and hospital and nursing home project notes in an aggregate principal
7 amount exceeding [~~eighteen~~] twenty billion [~~two hundred million~~]
8 dollars, excluding hospital and nursing home project bonds and hospital
9 and nursing home project notes issued to refund outstanding hospital and
10 nursing home projects bonds and hospital and nursing home project notes;
11 provided, however, that upon any such refunding or repayment the total
12 aggregate principal amount of outstanding bonds, notes or other obli-
13 gations may be greater than [~~eighteen~~] twenty billion [~~two hundred~~
14 ~~million~~] dollars only if the present value of the aggregate debt service
15 of the refunding or repayment bonds, notes or other obligations to be
16 issued shall not exceed the present value of the aggregate debt service
17 of the bonds, notes or other obligations so to be refunded or repaid.
18 For purposes hereof, the present values of the aggregate debt service of
19 the refunding or repayment bonds, notes or other obligations and of the
20 aggregate debt service of the bonds, notes or other obligations so
21 refunded or repaid, shall be calculated by utilizing the effective
22 interest rate of the refunding or repayment bonds, notes or other obli-
23 gations, which shall be that rate arrived at by doubling the semi-annual

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD01483-02-5

1 interest rate (compounded semi-annually) necessary to discount the debt
2 service payments on the refunding or repayment bonds, notes or other
3 obligations from the payment dates thereof to the date of issue of the
4 refunding or repayment bonds, notes or other obligations and to the
5 price bid including estimated accrued interest or proceeds received by
6 the agency including estimated accrued interest from the sale thereof.
7 The agency shall not issue hospital and nursing home project bonds at
8 any time secured by the hospital and nursing home capital reserve fund
9 if upon issuance, the amount in the hospital and nursing home capital
10 reserve fund will be less than the hospital and nursing home capital
11 reserve fund requirement, unless the agency, at the time of issuance of
12 such bonds, shall deposit in such reserve fund from the proceeds of the
13 bonds so to be issued, or otherwise, an amount which together with the
14 amount then in such reserve fund, will be not less than the hospital and
15 nursing home capital reserve fund requirement.
16 § 2. This act shall take effect immediately.